**HARBOR POINT INSURANCE**
Injury Claims · 77 Harbor Point Blvd, Riverton · (555) 010-5500 · Fax (555) 010-5590

Marcus Bell · Direct (555) 010-5527
marcus.bell@harborpoint.example

March 2, 2026

LSH Law Group
Attn: Atty. Elijah Thorne
500 Commerce St, Suite 1200, Riverton

| | |
|---|---|
| **Re:** | Coverage position — Personal Injury Protection (PIP) and Uninsured/Underinsured Motorists |
| **Claim number:** | HP-26-7741 |
| **Our named insured:** | Kevin Alvarez · Policy HPA-4402917 · 2020 Ford Escape |
| **Injured person:** | John Doe (front-seat passenger) |
| **Date of loss:** | 02/06/2026 |
| **Your file:** | LSH-2026-MVA-770412 |

Dear Atty. Thorne:

Thank you for your notice of representation on behalf of John Doe. We have reviewed the policy issued to our named insured, Kevin Alvarez, in effect on the date of loss. A copy of the declarations and an excerpt of the uninsured/underinsured motorists form are enclosed. Our position is as follows.

**1. Insured status.** Your client was occupying our named insured's covered auto, the 2020 Ford Escape, when it was struck on 02/06/2026. As a person occupying "your covered auto," he is an insured for Part B — Personal Injury Protection and Part C — Uninsured/Underinsured Motorists under this policy.

**2. Personal Injury Protection — $5,000.00 each person.** Riverton add-on PIP: 100% of reasonable expenses for necessary medical services resulting from the accident, and 80% of verified lost income, payable up to the combined limit. Mr. Doe is covered as an occupant of the insured vehicle; his PIP claim was opened 02/24/2026. Please submit itemized bills (CMS-1500 or UB-04) with the records. We have received the Riverton Urgent Care bill for date of service 02/20/2026 ($685.00); it is in process. Harbor Point has **no right of reimbursement** against your client's recovery for Personal Injury Protection (PIP) paid under this policy, and will not assert one.

**3. Uninsured/Underinsured Motorists — $20,000.00 each person / $40,000.00 each accident.** The policy carries our add-on (excess) form, HP-UM 04 12. Under that form the UM/UIM limit is in addition to, and is **not reduced by**, any amount paid by or on behalf of the at-fault driver. The policy contains **no Personal Injury Protection (PIP) non-duplication provision**: amounts paid under Part B will not be deducted from a UM/UIM payment.

**4. Conditions.** UM/UIM benefits are payable once the limits of the at-fault driver's bodily injury liability coverage have been exhausted by payment of judgments or settlements. Your client may not settle with the at-fault driver or that driver's insurer without Harbor Point's **written consent**. Please send us written notice of any tentative settlement, with the amount and a copy of the proposed release; we will consent or advance payment in the amount of the tentative settlement within 30 days of receipt. If we and your client cannot agree on the amount of damages, either party may demand arbitration under the policy (see the enclosed excerpt, ¶ H).

This letter is based on the information now available and does not waive any term, condition or exclusion of the policy.

Sincerely,

Marcus Bell

Marcus Bell
Injury Claims Representative — Personal Injury Protection (PIP) / UM
Harbor Point Insurance

Enclosures: Declarations, HPA-4402917 (10/18/2025 – 04/18/2026); Form HP-UM 04 12, Part C (excerpt)
cc: Kevin Alvarez (named insured)

# HARBOR POINT INSURANCE

Personal Auto Policy Declarations · 77 Harbor Point Blvd, Riverton

Policy number
**HPA-4402917**
Renewal · issued 09/26/2025

## NAMED INSURED & POLICY PERIOD

| NAMED INSURED AND ADDRESS | POLICY PERIOD |
|---|---|
| Kevin Alvarez<br>47 Fenwick St<br>Riverton | 10/18/2025 to 04/18/2026<br>12:01 a.m. standard time at the named insured's address |

| TERM | POLICY FORM | AGENT / PRODUCER | PAYMENT PLAN |
|---|---|---|---|
| 6 months | HP-PA 00 01 | Direct | Paid in full |

DRIVERS
1. Kevin Alvarez — named insured — rated, principal operator of Veh 1

## VEHICLE SCHEDULE

| Veh | Year / make / model | VIN | Body | Garaging | Use |
|---|---|---|---|---|---|
| 1 | 2020 Ford Escape SE | 1FMCU9G69LUA41736 | 4-door utility | 47 Fenwick St, Riverton | Commute |

## COVERAGES, LIMITS AND PREMIUMS (SIX-MONTH TERM)

| Coverage | Limits | Deductible | Veh 1 premium |
|---|---|---|---|
| Part A — Bodily Injury Liability | $50,000 each person / $100,000 each accident | — | $248.10 |
| Part A — Property Damage Liability | $50,000 each accident | — | $139.40 |
| Part B — Personal Injury Protection (PIP) | $5,000 each person | — | $38.70 |
| Part C — Uninsured/Underinsured Motorists BI Add-on (excess) form HP-UM 04 12 | $20,000 each person / $40,000 each accident | — | $61.20 |
| Part C — UM Property Damage | NOT CARRIED | — | — |
| Part D — Comprehensive | Actual cash value | $250 | $72.90 |
| Part D — Collision | Actual cash value | $500 | $214.50 |
| Rental Reimbursement | NOT CARRIED | — | — |
| | | Total coverage premium | $774.80 |
| | | Policy fee | $10.00 |
| | | **Total six-month premium** | **$784.80** |

Discounts applied: paid in full, safe driver. Coverage applies only where a premium is shown.

## FORMS AND ENDORSEMENTS

| Form | Title |
|---|---|
| HP-PA 00 01 (03/22) | Personal Auto Policy |
| HP-PA 01 30 (03/22) | Amendatory Endorsement — State |
| HP-PIP 02 05 (03/22) | Part B — Personal Injury Protection Coverage |
| HP-UM 04 12 (03/22) | Part C — Uninsured/Underinsured Motorists Coverage (Add-On / Excess), with Arbitration |
| HP-IL 99 01 (01/24) | Privacy Notice |

| LIENHOLDER / LOSS PAYEE | COUNTERSIGNATURE | COPY |
|---|---|---|
| None | R. Okonjo | Claim file HP-26-7741 · 03/02/2026 |

# PART C — UNINSURED/UNDERINSURED MOTORISTS COVERAGE (ADD-ON)

Excerpt furnished with coverage letter of 03/02/2026 · Claim HP-26-7741

## A. INSURING AGREEMENT

1. We will pay compensatory damages which an "insured" is legally entitled to recover from the owner or operator of an "uninsured motor vehicle" or an "underinsured motor vehicle" because of "bodily injury" sustained by an "insured" and caused by an accident.

2. We will pay under this coverage for an "underinsured motor vehicle" only if the limits of liability under all bodily injury liability bonds or policies applicable to it have been exhausted by payment of judgments or settlements, or a tentative settlement has been made and we have been given prompt written notice of it and have consented to it or advanced payment as provided in Paragraph E.

## B. INSURED

"Insured" as used in this Part means: 1. You or any "family member"; 2. Any other person "occupying" "your covered auto"; 3. Any person for damages that person is entitled to recover because of "bodily injury" to which this coverage applies sustained by a person described in 1. or 2. above.

## D. LIMIT OF LIABILITY

The limit of liability shown in the Declarations for each person is our maximum limit for all damages for "bodily injury" sustained by any one person in any one accident. This coverage is **in addition to**, and shall not be reduced by, any amount paid or payable by or on behalf of persons or organizations who may be legally responsible. No payment made under Part B — Personal Injury Protection Coverage shall reduce the amount payable under this Part.

## E. CONSENT TO SETTLE

We do not provide coverage under this Part for "bodily injury" sustained by any "insured" if that "insured" or the legal representative settles the "bodily injury" claim without our written consent. If an "insured" gives us written notice of a tentative settlement with the owner or operator of an "underinsured motor vehicle" or that person's insurer, we will, within 30 days after receipt of the notice: 1. consent to the settlement; or 2. advance payment to the "insured" in an amount equal to the tentative settlement, to preserve our right of recovery against the owner or operator.

## H. ARBITRATION

1. If we and an "insured" do not agree as to the amount of damages which are recoverable by that "insured" under this Part, **either party may make a written demand for arbitration**. The dispute shall be submitted to a single arbitrator selected by agreement of the parties. If the parties do not agree on an arbitrator within 30 days of the demand, either may request that one be appointed by a judge of a court having jurisdiction.

2. Each party will pay the expenses it incurs and bear the expenses of the arbitrator equally. Unless both parties agree otherwise, arbitration will take place in the county in which the "insured" lives. Local rules of law as to procedure and evidence will apply.

3. A decision of the arbitrator will be binding as to the amount of damages, not to exceed the limit of liability shown in the Declarations for this coverage.

Paragraphs C (Exclusions), F (Other Insurance) and G (Our Right to Recover Payment) are omitted from this excerpt. The complete form is available on request.